

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
RANDY JIMENEZ

Plaintiff,

- against -

**THE CITY OF NEW YORK, BRYANT HARINARAIN P.O. OF
THE 30TH PRECINCT, SHIELD NO #18981, TAX ID 943352,
OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED
IN ARREST #M18623628 WHOSE NAMES ARE NOT KNOWN
AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS
TO THE INCIDENT THAT AROSE ON APRIL 26, 2018**

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of the New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
April 20, 2019



VIVIAN R. CEDENO
Attorney for Plaintiff
213-37 39th Avenue
Suite 184
Bayside, New York 11361
(718) 404-9536

Index No.:

Purchased:

Plaintiff designates

NEW YORK County as the place of trial

The basis of the venue is where the
tort arose and where Plaintiff resides.

SUMMONS

Plaintiff resides at

RANDY JIMENEZ

1508 Amsterdam Avenue, 5C
New York, NY 10031

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

CITY OF NEW YORK POLICE DEPARTMENT

One Police Plaza
New York, NY

**BRYANT HARINARAIN P.O. OF
THE 30TH PRECINCT, SHIELD NO #18981**

451 West 151st Street
New York, NY 10031

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.: _____

-----X
RANDY JIMENEZ

Plaintiff,

VERIFIED COMPLAINT

Against

THE CITY OF NEW YORK, BRYANT HARINARAIN P.O. OF
THE 30TH PRECINCT, SHIELD NO #18981, TAX ID 943352,
OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED
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Defendants.
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RANDY JIMENEZ, by his attorney, VIVIAN R. CEDENO, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **RANDY JIMENEZ** was a resident of New York County, City and State of New York.
2. At all times mentioned, Defendant, **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 8th day of August, 2018 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant, **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant, **CITY OF NEW YORK**, of the nature, place time and manner in which the claim rose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

5. The Plaintiff has complied with the request of municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.

6. Upon information and belief, at all times mentioned, Defendants, **BRYANT HARINARAIN P.O. OF THE 30TH PRECINCT, SHIELD NO #18981, TAX ID 943352, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #M18623628 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 26, 2018** were and are Officers and/or employees of the defendant, **CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**.

7. On or about April 26, 2018, at approximately 5:15pm, inside of 3300 Broadway, County and State of New York the Defendants, **BRYANT HARINARAIN P.O. OF THE 30TH PRECINCT, SHIELD NO #18981, TAX ID 943352, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #M18623628 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 26, 2018**, jointly and severally in their capacity as Officers, falsely imprisoned, illegally searched in violation of his Constitutional civil right to be free from illegal search by officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, **RANDY JIMENEZ**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to arrest, search, seize, grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effects as though set forth at length herein.

9. On or about April 26, 2018, at approximately 5:15pm, inside of 3300 Broadway, County and State of New York the Defendants, **BRYANT HARINARAIN P.O. OF THE 30TH PRECINCT, SHIELD NO #18981, TAX ID 943352, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #M18623628 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 26, 2018**, jointly and severally did place Plaintiff, **RANDY JIMENEZ**, in imminent fear of physical contact by approaching the Plaintiff and restraining the Plaintiff. They further unlawfully detained the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.

11. On or about April 26, 2018, at approximately 5:15pm, inside of 3300 Broadway, County and State of New York the Defendants, **BRYANT HARINARAIN P.O. OF THE 30TH PRECINCT, SHIELD NO #18981, TAX ID 943352, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #M18623628 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 26, 2018**, jointly and severally without any warrant,

order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a local precinct in the County of New York. There charged him with the crimes on Arrest No.: M18623628. The Plaintiff was thereafter held in custody over the course of approximately 24 hours in the custody of the New York City Department of Correction until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effects as though set forth at length herein.

13. On or about April 26, 2018, at approximately 5:15pm, inside of 3300 Broadway, County and State of New York the Defendants, **BRYANT HARINARAIN P.O. OF THE 30TH PRECINCT, SHIELD NO #18981, TAX ID 943352, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #M18623628 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 26, 2018**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's jail facilities, to wit a local police precinct holding cell, and/or to Central Booking. The Plaintiff was thereafter held in custody over the course of approximately 24 hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR THE FIFTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.

15. Defendants, **BRYANT HARINARAIN P.O. OF THE 30TH PRECINCT, SHIELD NO #18981, TAX ID 943352, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #M18623628 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 26, 2018**, were at all times relevant, duly appointed and acting officers of the NEW YORK CITY POLICE DEPARTMENT.

16. At all times mentioned herein, said officers were acting under color of law, to wit; the statutes, ordinances, regulations, policies and customs and usage of the State of New York and City of New York.

17. Plaintiff, **RANDY JIMENEZ**, is and at all times relevant herein, a resident of New York County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

18. The Defendant, **BRYANT HARINARAIN P.O. OF THE 30TH PRECINCT, SHIELD NO #18981, TAX ID 943352, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #M18623628 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 26, 2018**, is a municipality duly incorporated under the laws of the State of New York.

19. On or about April 26, 2018, the Defendants, while effectuating the arrest of the Plaintiff, **RANDY JIMENEZ**, did grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was unlawfully imprisoned, assaulted, and had multiple batteries committed against him, without the Defendants possessing probable cause to do so. In the instant case, Plaintiff

was arrested for a Trademark Counterfeiting in the Third Degree. Petitioner was arraigned in New York Criminal Court on April 27, 2018 and released on his own recognizance on the criminal matter relating to arrest number M18623628 and subsequent docket number 2018NY019917. Petitioner's case was dismissed by the New York County District Attorney's Office in the interest of justice on May 18, 2018.

20. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from assault to his person.
- b. Freedom from battery to his person.
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process;
- f. Freedom from unlawful imprisonment;
- g. Freedom from loss of his liberty.
- h. Freedom from being illegally searched.

21. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

22. The direct and proximate result of the Defendant's acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

23. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "22" with full force and effect as though set forth at length herein.

24. Defendants, **THE CITY OF NEW YORK, BRYANT HARINARAIN P.O. OF THE 30TH PRECINCT, SHIELD NO #18981, TAX ID 943352, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #M18623628 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 26, 2018**, have grossly failed to train and adequately supervise its Officers in the fundamental law of arrest, search and seizure especially when its officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not omitted a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate and arrest and the arrest should be based on probable cause.

25. **THE CITY OF NEW YORK**, was negligent by failing to implement a policy with its Department and instruct Officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said Officers of the City of New York and the Police Department are not to arrest or unlawfully detain individuals such as the Plaintiff here were probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

26. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
2. Excessive force cannot be used against an individual who does not physically resist arrest.
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

27. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused the police officers to falsely arrest, illegally detain in custody, unlawfully detain in custody, maliciously prosecute, seize illegally and search the Plaintiff commit an

assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "27" as it set forth at length herein.

29. Defendant, **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, **BRYANT HARINARAIN P.O. OF THE 30TH PRECINCT, SHIELD NO #18981, TAX ID 943352, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #M18623628 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 26, 2018** knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, illegally keep in custody, unlawfully keep in custody nor use excessive force during the process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction in the amount of one million dollars (\$1,000,000.00), together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
April 20, 2019

Yours, etc.
LAW OFFICE OF VIVIAN R. CEDENO
BY: VIVIAN R. CEDENO
Attorney for Plaintiff
213-37 39th Avenue
Suite 184
Bayside, New York 11361
(718) 404-9536

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
RANDY JIMENEZ

Plaintiff,

VERIFICATION

Against

**THE CITY OF NEW YORK, BRYANT HARINARAIN P.O. OF
THE 30TH PRECINCT, SHIELD NO #18981, TAX ID 943352,
OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED
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Defendants.
-----X

I, VIVIAN R. CEDENO, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of the Law Office of Vivian R. Cedeno, the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside of the county where the deponent maintains her office. I affirm that the foregoing statements are true, under penalties of perjury.

Dated: Bayside, New York
April 20, 2019



VIVIAN R. CEDENO, ESQ.

Index No.: _____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

RANDY JIMENEZ,

Plaintiff,

Against

THE CITY OF NEW YORK, BRYANT HARINARAIN P.O. OF THE 30TH PRECINCT, SHIELD NO #18981, TAX ID 943352, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #M18623628 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 26, 2018

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Law Office of Vivian R. Cedeno
BY: VIVIAN R. CEDENO
Attorney for Plaintiff
213-37 39th Avenue
Suite 184
Bayside, New York 11361
Tel. (718) 404-9536

To: CORPORATION COUNSEL OF NEW YORK CITY

NEW YORK CITY POLICE DEPARTMENT

**BRYANT HARINARAIN P.O. OF
THE 30TH PRECINCT, SHIELD NO #18981**
451 West 151st Street
New York, NY 10031

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated: _____

